

26CHLC04250 26CHLC04250

County: los-angeles

Division: Civil Law and Motion

Department: 25

Hearing date: 2026-09-10

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Case Number: 26CHLC04250 Hearing Date: September 10, 2026 Dept: 25

HEARING DATE: Thurs., August 10, 2026 JUDGE /DEPT: Eisenman/25

CASE NAME: Ferguson

Enterprises, LLC v. Panda Rooter Inc., et al.

COMP. FILED: 01-26-26

CASE NUMBER: 26CHLC04250

NOTICE: OK

PROCEEDINGS: MOTION

TO STRIKE ANSWER OF DEFENDANT CORPORATION FOR FAILURE TO HAVE A
CALIFORNIA-LICENSED ATTORNEY, OR IN THE ALTERNATIVE, FOR JUDGMENT ON THE
PLEADINGS

MOVING PARTY: Plaintiff

Ferguson Enterprises, LLC

RESP. PARTY: None

MOTION TO STRIKE

(Code Civ. Proc., §§ 435,
436)

TENTATIVE RULING:

The Court

DENIES Ferguson

Enterprises, LLC's motion to strike.

On its own motion, the Court STRIKES Panda

Rooter Inc.'s portion of the answer filed on May 6, 2026.

Ferguson is to give

notice.

SERVICE:

☒ Proof of

Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address

(CCP §§ 1013, 1013a) OK

☒ 16/21 Court

Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: None

filed as of September 4, 2026 ☐ Late ☒ None

REPLY: None

filed as of September 4, 2026 ☐ Late ☒

None

ANALYSIS:

Ferguson

Enterprises, LLC sued Panda Rooter Inc. and Roberto Carlos Carpio for breach of contract and of personal guaranty. Panda

Rooter and Carpio filed a joint answer as self-represented litigants. In May 2026, Ferguson filed and served a motion to strike Panda Rooter's answer because it is an unrepresented corporation. The case was then reassigned to this Court and Ferguson refiled the same motion to strike.

Motions to strike in limited jurisdiction courts may only

challenge pleadings "on the ground that the damages or relief sought are not

supported by the allegations of the complaint.”

(Code Civ. Proc. § 92, subd. (d).)

Ferguson's request falls outside the bounds of permitted motions to strike in limited civil cases, so the Court DENIES it.

Ferguson is correct, though, that an entity or corporation must be represented by a lawyer in legal proceedings and may not represent itself (either directly or through a non-lawyer agent) in litigation. (Merco Constr. Engineers, Inc. v. Municipal Court (1978) 21 Cal.3d 724, 727, 729; Caressa Camille, Inc. v. Alcoholic Beverage Control Appeals Bd. (2002) 99 Cal.App.4th 1094, 1103.)

Panda Rooter is currently a self-represented corporation, has been on notice of this motion since May 2026, and has not filed an opposition or other document indicating it has since acquired counsel. Thus, the Court, on its own motion, STRIKES Panda Rooter's portion of the answer filed on May 6, 2026.

Ferguson is to give notice.